

Cheyenne City Council

Agenda Item Cover Sheet



DO NOT STAPLE ANYTHING!

ALL AGENDA ITEMS ARE TO BE DELIVERED TO THE MAYOR'S OFFICE (ROOM 310)
BEFORE NOON ON THE WEDNESDAY PRIOR TO THE CITY COUNCIL MEETING

QUESTIONS? CALL VIRGINIA @ 637-6300

COUNCIL MEETING DATE:

ITEMS YOU MUST INCLUDE:

1 (ONE) AGENDA ITEM COVER SHEET FORM

2 (ONE) ORIGINAL PLUS ONE COPY OF BACKUP **COPY SINGLE-SIDED (8.5 X 11)**

ELECTRONIC COPY (INCLUDE ALL BACKUP) TO KRISTY ANDERSON OR KYLIE SODEN (City Clerk's Office)

☐ Attorney Stamp

☐ Risk Management Stamp (**Leases, Contracts, MOUs Only**)

TYPE OF DOCUMENT

☐ Ordinance* ☐ Resolution* *Council Sponsor(s):

☐ Preliminary Plat/Preliminary Zone Change

☒ Change Order/Contract Modification

Contract #

☐ Application/License/Permit

☐ Amendment To Lease/Contract/MOU Contract #

☐ Lease/Contract/MOU

Start Date: End Date:

☐ Consideration Of Bid

☐ Announcement/Report/Motion

☐ Appointment

EXACT Wording Of Agenda Item: Contract Modification #1 to Contract #5781 between the City of Cheyenne and Ayres Associates for the addition of strategic grant writing services and associated preliminary engineering design required by grants to enable securing of additional grant funding for the Cheyenne West Edge (Lower Capital Basin) project (1% Specific Purpose Tax).

FUNDING

☐ General Fund ☐ Solid Waste ☐ Grant (SLIB, FTA, etc.).....Funding Type

☐ 2007-2010 1% Sales Tax ☐ 2011-2014 1% Sales Tax ☒ 1% Specific Purpose Tax (6%) ☐ Revenue To City

☐ NA ☐ Other

INFORMATION/REVIEW

Contact Person: Matt Ashby

Phone: 637.6271

Dept: Planning Services

Agenda Item Reviewed And/Or Approved By Department Head:

☒ Electronic Copy Sent ☐ Executed Copy(s) To: Planning, Special Projects

CITY OF CHEYENNE
CONTRACT MODIFICATION

D. White

2-24-2013

Contract Modification: #1
Project: Professional Services Agreement for Downtown Cheyenne Lower Capitol Basin Brownfield Project
Project Number: Contract # 5781
Contractor: Ayres Associates
Date Prepared: January 28, 2013

The above referenced contract is amended or modified as set forth in the following and these amendments and modifications of the original services are agreed to by the parties. All other aspects of the original agreement remain unchanged and in full force and effect.

I. Description of Changes

Change would provide for strategic grant writing and preliminary engineering design for the Trunk line Interceptor project and the 15th Street Facility project, both projects being initial phases of the larger Cheyenne West Edge project. These services would be additional services to the professional environmental and drainage master planning services agreed to for the Lower Capitol Basin Brownfield Project to be funded by 6th Penny Sales Tax (2013-2017) funds. Scope of Work to include the cultivation of relationships with key prospects (both grant-making organizations and individual donor prospects), as well as, preliminary engineering design and engineer's cost estimates required in support of State and Federal grant submissions. Also included in the Scope of Work is the engineering design required to evaluate connection to City's Snyder Avenue Storm Sewer project and follow up efforts related to development of Project Implementation Plan for approval by the WDEQ for Section 319 funds for the Lower Capitol Basin Wetlands project (15th Street Facility). Ayres Associates proposes a not-to-exceed amount of \$263,620.00 for additional services outlined in the attached Scope of Work.

Contract Modification #1 not-to-exceed amount of \$263,620.00 for additional services to be administered by City as Task 6 of Downtown Cheyenne Lower Capitol Basin Brownfield Project. Task 6 is to be funded by 6th Penny Sales Tax (2013-2017) designated for the Capitol Basin Flood Control & Public Improvements Project. Ayres Associates shall delay invoicing for Task 6 services until after 6th Penny Sales Tax (2013-2017) funds become available to the City in 2013.

II. New Contract Items

See the attached fee proposal for additional services.

III. Schedule

Modification will extend professional services beyond original services agreed to by the parties for Contract #5781. Additional services covered under Contract Modification #1 will be executed from February 1, 2013 through December 31, 2013.

IV. Summary

Original Contract Amount	\$971,000.00
Contract Amount Prior to this Modification.....	\$971,000.00
This Modification	\$263,620
New Contract Amount	\$1,234,620.00

V. Approvals

DATE: _____

City of Cheyenne

Mayor Richard L. Kaysen

/_____
/ATTEST: City Clerk Carol A. Intlekofer

Accepted by Ayres Associates Manager

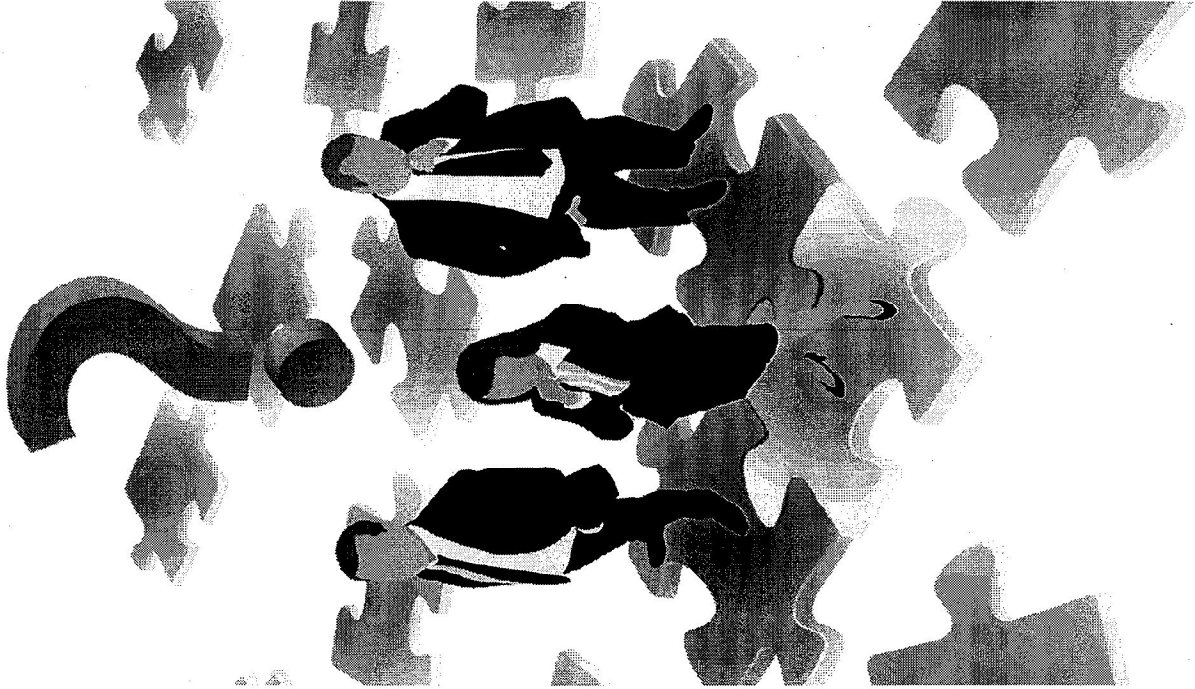
/_____
/Recommend approval by City Project Manager

Exhibit A Ayres Associates - City Contract# 5781 Contract Modification #1 Fee Proposal
Downtown Cheyenne Lower Capitol Basin Brownfield Project



LABOR DETAIL AND SUMMARY OF DIRECT AND SUBCONSULTING COSTS BY TASK

Task	Description	Principal-in-Charge	Senior Project Manager	Senior Project Engineer	Project Engineer 1	Two-Man Survey Crew	Scientist 3	Technical Editor/Contract Administrator	Total Labor Cost	Total Direct Expenses	Subconsultant Services Support	Total by Task
		\$182	\$153	\$121	\$110	\$142	\$95	\$71				
A.1.	2013 Strategic Funding/Grant Applications											
	Wyoming SLIB MRG Application & Follow up		16						\$ 2,448			\$ 2,448
	Wyoming SRF Application #1 & supporting engineering design and construction cost estimates	8	80	24	48	16	24	2	\$ 26,574	\$	20,640	\$ 47,214
	Wyoming SRF Application #2 & supporting engineering design and construction cost estimates	2	28	8	24		40	2	\$ 12,188			\$ 12,188
	Wyoming Business Council Downtown Development Grant Application & supporting engineer's cost estimates		20		24		24	2	\$ 8,122		930	\$ 9,052
	EDA Grant Application	8	80	24	48		8	2	\$ 22,782		25,800	\$ 48,582
	Three EPA Brownfield Remediation Grant Applications	32	50				90	2	\$ 22,166			\$ 22,166
	Chase Park Grants February 2013 Retainer with City of Cheyenne								\$ 3,500	\$	3,500	\$ 3,500
	Research Grant data & provide recommendations		8						\$ 1,224		4,354	\$ 5,578
	Identify leverage opportunities		2						\$ 306		1,395	\$ 1,701
	Client/cultivation meetings, identification of targeted programs		8						\$ 1,224		1,860	\$ 3,084
	Progress reports & project meetings	8	8					2	\$ 2,822	\$ 1,058	1,860	\$ 5,740
	Subtotal	58	300	58	144	16	188	12	\$ 99,886	\$ 1,058	60,339	\$ 161,283
A.2.	Funding Prospects/Key Project Partners											
	Identify & cultivate donor prospects	2	8						\$ 1,588		4,354	\$ 5,942
	Development & publication of Sponsorship Package	4	16						\$ 3,176	\$ 2,500	14,354	\$ 20,030
	Engaging Corporate Sponsors/"Ask Meetings"		24						\$ 3,672		5,805	\$ 9,477
	Subtotal	6	48						\$ 8,436	\$ 2,500	24,513	\$ 35,449
A.3.	Preliminary Engineering Design/Deliverables											
	Peer review of Snyder Ave. H&H analyses		16	24		8		2	\$ 6,630		1,750	\$ 8,380
	Finalize SWMM hydrologic model for 28th Street Interceptor		24	80	24			2	\$ 16,134		1,250	\$ 17,384
	Preliminary hydraulic model for 28th Street Interceptor		24	40	24				\$ 11,152			\$ 11,152
	Preliminary Engineer's estimate of construction cost for 28th Street Interceptor		16	24				2	\$ 5,494			\$ 5,494
	Evaluation of potential impact to Crow Creek downstream of 23rd Street outfall		24	40					\$ 8,512			\$ 8,512
	Coordination with engineering staff/design review meetings		8	8					\$ 2,192			\$ 2,192
	Design Report & 10% Construction Documents		24	40	24			2	\$ 11,294	\$ 2,500		\$ 13,794
	Subtotal		136	256	72	8		6	\$ 61,408	\$ 2,500	3,000	\$ 66,908
	Total	64	484	312	216	24	188	18	\$ 198,710	\$ 6,058	87,852	\$ 293,620



City of Cheyenne: 2013 Contract Modification Request Grants Support Services

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February 20, 2013

Contract Modification

Purpose:

Secure additional grant support services:

- Strategic grants planning
- Grant writing, planning, and preparation
- Engineering technical assistance
- Funding technical assistance

2012 Grant Strategy Status:

\$2.8 million targeted

\$1.6 million awarded

\$1.2 million pending

Fiscal Impact:

Return on Investment (ROI): \$14 to \$132 for every \$1 expended
5+ funding opportunities targeted for pursuit in 2013

Contract Modification

2013 Tasks:

- Strategic grants planning
 - *Ensure Cheyenne is pursuing grants we are most likely to win.*
- Grant writing, planning, and preparation
 - *Complete applications, supporting data, and document submittal.*
- Engineering technical assistance
 - *Provide additional design information as required by grants in order to complete applications.*
- Funding technical assistance
 - *Provide cost estimates to include with grant applications to ensure project applications accurately reflect associated construction costs.*

Contract Modification

Request:

- Not to Exceed \$263,620
- Continued assessment of "prime" grant opportunities
- Source – 6th Penny Funds
- Authorized Use Under Resolution #5374

WHEREAS, the Commissioners have determined that a 1% Specific Purpose Sales and Use Tax should be imposed within the County pursuant to Wyo. Stat. §§ 39-15-203(a)(iii), 39-15-204(a)(iii), 39-16-203(a)(ii), 39-16-204(a)(ii), and 39-16-202(e) in order to fund the planning, construction, furnishing, equipping, acquisition and improvement of land and, to the extent necessary and allowed by law, the pledge to or payment of operation and maintenance, debt service and/or lease service payments thereon, and, if necessary and/or available, to be used to leverage or match federal/and or state grant funds, for the above-referenced Projects; and